

**BANARAS HINDU UNIVERSITY**

B.Com. (Hons.) — Semester V Examination, 2022-23

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**Paper No. BCH-313: Company Law**

Time: 3 Hours

Maximum Marks: 70

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*Instructions: Attempt all questions. All questions carry equal marks (14 marks each).***Question 1.** Write a note on the evolution of Company legislation. [14]**OR**

Explain briefly the salient features of the Companies Act, 2013. [14]

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**Question 2.** What do you mean by a Public Company? State the provisions for conversion of a Public Company into a Private Company and vice-versa. [14]**OR**

Define the Articles of Association and give their contents. [14]

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**Question 3.** Discuss the 'Doctrine of Constructive Notice' and 'Doctrine of Indoor Management'. Also state the exceptions to the doctrine of Indoor Management. [14]**OR**

Describe the modes of acquisition of membership of a company. Distinguish a member from a shareholder. [14]

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**Question 4.** Define 'Director' and discuss their powers and duties. [14]**OR**

What is a Charge? What information must be entered in the register of charges maintained by a company? [14]

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**Question 5.** Under what circumstances can a company be voluntarily wound up? Distinguish between members' voluntary winding up and creditors' voluntary winding up. [14]**OR**

Write short notes on any three of the following: [14]

- (a) Borrowing Powers of a Company
- (b) One Person Company (OPC)
- (c) Women Director
- (d) Prospectus

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